

SENATE No. 1840

The Commonwealth of Massachusetts

PRESENTED BY:

Ryan C. Fattman

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to reform sick leave buybacks.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/21/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/26/2025</i>

SENATE No. 1840

By Mr. Fattman, a petition (accompanied by bill, Senate, No. 1840) of Ryan C. Fattman, Joseph D. McKenna and Bruce E. Tarr for legislation to reform sick leave buybacks. Public Service.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1655 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to reform sick leave buybacks.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 31A of said chapter 29, as appearing in the 2022 Official Edition, is
2 hereby amended by inserting the following 2 subsections:-

3 (e) No employee of the commonwealth shall accrue more than 1,000 hours of unused sick
4 leave credits.

5 (f) No employee of a public institution of higher education listed in section 5 of chapter
6 15A shall accrue more than 1,000 hours of unused sick leave credits.

7 SECTION 2. Notwithstanding any general or special law to the contrary, section 1 shall
8 take effect for any employee of the commonwealth and any employee at public institutions of
9 higher education listed in section 5 of chapter 15A who has accrued not more than 1,000 hours of
10 unused sick leave credits, on the effective date of this act. Any such employee who has accrued

11 more than 1,000 hours of unused sick leave credits as of the effective date of this act shall not
12 accrue credits in excess of those credits, but may accrue credits to replenish any sick time that is
13 used after the effective date of this act, up to the maximum of 1,000 hours set forth above.

14 SECTION 3. Notwithstanding any general or special law to the contrary, the personnel
15 administrators shall promulgate revised rules under the second paragraph of section 28 of chapter
16 7 of the General Laws to incorporate the changes enacted in subsection (e) of section 31A of
17 chapter 29 and section 2 of this act.

18 SECTION 4. Notwithstanding any general or special law to the contrary, the department
19 of higher education and the University of Massachusetts shall revise the necessary rules and
20 policies in order to incorporate the changes enacted in subsection (f) of section 31A of chapter 29
21 and section 2 of this act, which revisions shall take effect as soon as practicable after the
22 effective date of this act.

23 SECTION 5. This act shall take effect upon its passage.